AGREEMENT FOR SALE

This Agreement for Sale ("Agreement") is made at _____ on this _____ day of _____ 2026.

BETWEEN

SANCTUM INFRATECH PVT. LTD. a Company registered under the provisions of Indian Companies Act, 1956, and having its registered office at 309, Highway Commercial Centre, I. B. Patel Road, Goregaon (East), Mumbai – 400 063, through its Directors, **MR. RAVI KANT SINGH & MR. BIPIN RAVINDRA SINGH** hereinafter referred to as "THE PROMOTERS" (which expression shall unless it be repugnant to the context or meaning thereof be deemed to mean and include the said Company and its Successors in Title) of the **ONE PART;**

AND

Gaurav Chaurasiya, Having Pan No.**CDHR1243** & **Preeti**, Having Pan No. **FHDHR23**, Mumbai, Indian inhabitant, residing at **124 , Beerapur ,Beerapur , Pratapgarh** hereinafter referred to as "THE ALLOTEE(S)/PURCHASER(S)" (whose expression shall unless it be repugnant to the context or meaning thereof be deemed to mean and include in case of an individual, the heirs, executors and administrators and the permitted assigns of the individual of the **OTHER PART;**

(The Promoter and the Allottee/Purchaser are hereinafter for the sake of brevity individually referred to as "Party" and collectively and jointly referred to as the "Parties")

WHEREAS

A. Smt. Lucy Nicholas D'silva alias Seal, Mr. Angel Nicholas D'silva alias Sea Smt. Monica Angel D'silva alias Seal, Mr Michael Nicholas D'Silva alias Sea Mr. Vincent Nicholas D'Silva alias Seal, Mr. John Nicholas D'Silva alias Sea Mr. Lawrence Nicholas D'silva alias Seal, Mr Eden Nicholas D' Silva alias Se and Smt. Kashiben Tribhuvan Kumbhar were jointly seized and possessed of or otherwise well and sufficiently entitled to all that piece and parcel of land bearing Survey No 281, Hissa No 2 (part), CTS No.694 totally admeasuring abou 1925.40 sq.mtrs, all in Village Dahisar, Taluka Borivali, Mumbai Suburban (hereinafter referred to as the said Land) and more particularly described in Schedule I hereunder written.

B. By an Agreement dated 14th February 1981, the said land was sold by Smt. Lucy Nicholas D'silva alias Seal and others to M/s. Superstar Builder for development purpose who in turn by an Agreement dated 16th May 1985 agreed to sell, transfer and assign all their rights, title and interest in the said original agreement dated 14/2/1981 in favour of M/s. Leela Construction Co.

C. That the said M/s. Leela Construction Co., of the other part agreed to develop the said piece or parcel of land on terms and conditions mentioned therein.

D. That pursuant to the said Agreements between the Vendors and the Confirming Party therein, the Vendors have granted license to the Party therein to develop the said property and to construct the buildings thereon and to sell the units i.e. flats/shops therein on ownership basis to the prospective purchasers.

E. That the Party took possession of the said land and decided to commence construction of the building on the said land particularly described in the Schedule hereunder written consisting of flats and shops, etc., with a view to sell the same on ownership basis.

F. That the Party got the building plans sanctioned by the Municipal Corporation of Greater Bombay which had issued IOD bearing No. EB/CE/6457/BSII/A dated 19th October 1989 and commencement certificate bearing No. CE/6457/BSII/A/R dated 20th May 1986 for commencement of the construction under aforesaid IOD. That the IOD before CC Party constructed the building of the society "Shreenath Bhuvan" on the said land by getting the plans sanctioned by the Municipal Corporation as aforesaid for the said land.

G. That the said M/s Leela Construction Co., the said Party constructed the buildin of the present society consisting of flats and shops on the said land mentioned in the said Schedule referred above, and also hereunder written, as per the plans and specifications approved by the Municipal Corporation of Greater Mumba (MCGM) (hereinafter referred to as the said building). The copy of th Occupation Certificate, Commencement Certificate and IOD approved by th MCGM "Annexure- I".

H. That the said M/s Leela Construction Co., sold flats and shops to variou purchasers by diverse agreement for suitable consideration, under Maharashtra Ownership of Flats Act, 1963, and purchasers were put in vacant and peacefu possession of their respective flats/shops by the confirming party after receiving the agreed consideration.

I. The purchasers of the flats and shops formed a cooperative housing society under the name of "Shreenath Bhuvan Co-operative Housing Society Ltd." which wa duly registered with the Registrar of Co-operative Housing Societies bearin registration No. BOM/W-R/HSG/TC/11173/2000-2001 dated 13/3/200 having its registered address at Yashwantrao Tawade Road, Dahisar (W), Mumbai-400 068. Hereto annexed and marked "Annexure-II" is a registratio certificate of the society.

J. That all the Flat/shops Owners were admitted as the members of the said societ and were issued shares of the said society.

K. The said Party was required to convey the said plot of land admeasuring 1925.40 sq. metres bearing CTS No. 694 of Village Dahisar, Taluka Borivali, Mumba (hereinafter referred to as the said land) in Mumbai, Mumbai suburban Distric along with the said building to the/in favour of the said society within four months from the date of registration of the society as provided under section 11 of the Maharashtra Ownership of Flats Act, 1963 read with rule 9 ofthe Maharashtra Ownership of Flats Rules,1964 under which thebuilder had constructed the said flats/shops to the respective purchasers. The said builder grossly failed to comply with the statutory obligation of conveying the land and the building in favour of the said society.

L. That the SOCIETY thereafter wrote letters and called upon the Builder t execute the Conveyance Deed conveying the said land along with the building along with all the fittings, fixture, appurtenances etc., in favour of the said society,

which the confirming party/vendors, were required to do so, by law. The Confirming Party/Builder did not comply with such requests, nor took any steps to execute conveyance.

M. Thus, the said Builder failed to execute the required conveyance for conveying the right, title and interest in the said land and the said building in favour of the said society. Repeated requests were made to the Owner for conveying the said property in favour of the said society which did not yield any result.

N. The Society, therefore made an application bearing Application No. 123 of 2014 with respect to the said land which was in their possession admeasuring 1925.40 square meters bearing CTS 694 of Village Dahisar, taluka - Borivali, Mumbai suburban District along with the building before the Competent Authority appointed under section 5A of the Maharashtra Ownership of Flats Act, 1963 before the District Deputy Registrar of Co-operative Societies, Mumbai City- under the provisions of sub-section (3) of Section 11 of MOF Act for issuing a certificate of entitlement to the said Society to have an Unilateral Deemed Conveyance executed in its favour and to have it registered, by exercising the powers granted under Maharashtra Ownership of Flats Act, 1963 (hereinafter referred to as MOF Act, 1963), to this effect.

O. The Competent Authority, carefully scrutinized the application of THE SOCIETY under Section 11 of MOF Act 1963 and issued notices to the Promotor/Builder/Owners and their legal heirs at the last known addresses, and as a matter of abundant caution, ensued notices in Marathi and English News Papers inviting the objections/claims against the suit premises/ said land and to show cause why deemed conveyance order should not be issued in favour of Society for the said land along with building thereon.

P. The Competent Authority being satisfied with the merits of the submission of the Applicant Society, issued an order cum certificate bearing No. DDR-4/Mum/D/C/Shreenath Bhuvan CHSL/913/2015 dated 11-05-2015 certifying that the society is entitled to Unilateral conveyance of the said land and said building and execute Deed of Unilateral Conveyance and have it registered as provided under the Registration Act, 1908.

Q. Pursuant to order dated 11-05-2015, passed by DDR, the Unilateral Deed of Conveyance (Deemed Conveyance) dated 27th October 2015 executed in favour of the society assigning, conveying and transferring all the piece and parcel

bearing Survey No 281, Hissa No 2 (part), CTS No.694 totally admeasurin about 1925.40 sq. metres, in Village Dahisar, Taluka Borivali, Mumbai Suburbar for the terms and conditions more particularly set out in the said Deed of Conveyance dated 27th October 2015. The said Deed of Conveyance is duly registered with the office of Sub-registrar of Assurances under Serial No. BRL 8/8740 of 2015.

R. The society had appointed Shree Jalaram housing for the payment of all stamp duty, registration and all other legal and professional expenses incurred for execution and registration of Deed of Conveyance on the pretext that Shree Jalaram Housing shall take the project of redevelopment of society. However, due to feasibility issue, the Society had terminated the appointment of Shree Jalaram Housing for redevelopment against which the Shree Jalaram Housing had vide Letter dated 16/07/2023 had provided NOC to the society for the redevelopment and appointment of another developer subject to payment of the expense occurred for Deed of Conveyance.

M. Thus, pursuant to above Deed of Conveyance dated 27th October 2015 the society became the absolute owner of the said land.

N. The Society and its members had earlier appointed JBR developers for redevelopment of the building vide Resolution passed on 13th June 2012, however the said JBR Developer even after passage of 1 year failed to provide any positive response towards the redevelopment and due to which upon mutual consent vide Resolution dated 14th July 2022, the Society and its members terminated the appointment of JBR developers for redevelopment.

O. The Society and its Members had thereafter appointed R N & Associates Developers, which later, due to unreconcilable reasons were also cancelled on 14th April 2023 however, R N & Associates has filed an erroneous civil suit bearing No. 1874 of 2023 against the Society before Dindoshi City Civil court and same is pending before Court.

P. By and under a Development Agreement dated **7th February 2025** (hereinafter referred to as **"the Development Agreement"**) made between the Society herein, therein referred to as the Society of the First Part and **SANCTUM INFRATECH PVT. LTD** therein referred to as the Developer of the Second Part, and registered with the office of the Sub-Registrar of Assurances at Borivali under Serial No. BRL-7/2358 of 2025, the Society ha

granted unto the Promoter herein viz., **SANCTUM INFRATECH PV LTD.** , development rights and license to enter upon and to re-develop/construct a new building/s on the said land, at or for the consideration upon the terms and conditions and in the manner therein contained.

Q. In furtherance to the Development Agreement, the said Society has also executed a Power of Attorney dated **7th February 2025** (**"the POA"**) in favour of **SANCTUM INFRATECH PVT. LTD.** , to do various acts, deeds and things on behalf of the Society in furtherance of the redevelopment of the said Property. The POA is registered with the office of the Sub-Registrar of Assurances a Borivali under Serial No. **BRL-7/2365 of 2025.**

X. In view of the foregoing, the Promoter came to be entitled to develop the said Property on terms of the Development Agreement and the POA.

Y. The Property Register Cards of the said Property are annexed hereto and collectively marked as **"Annexure III"** .

Z. Thus, Promoter is entitled and enjoined upon to construct buildings on the project land in accordance with the recitals hereinabove;

AA. Promoter is in possession of the project land.

AB. Pursuant to the Development Agreement, the Promoters herein are entitled to Free Sale Flats (after providing area to the Society Members) in constructed area of the proposed new building to be constructed on the said Property and are entitled to deal with and dispose of the same and enter into the Agreements for Sale with the prospective purchasers for sale of the premises forming part of the aforesaid constructed areas and to receive the consideration in their names.

AC. The Promoter has proposed to construct on the project land/building comprising of Ground (pt) + Stilt (pt) + 2 Podium to 19 residential upper floors.

AD. Allottee is offered a Flat/ shop/ Commercial premises bearing number **205** on the **Second Floor** , (hereinafter referred to as the said "Flat/ shop/ Commercial premises") in the only one wing of the building called **DPS RIVERA** (hereinafter referred to as the said "Building") being constructed in the phase of the said project, by the Promoter.

AE. The Promoter has entered into a standard Agreement with an Architect Mr.

Chirag Rayani registered with the Council of Architects and such Agreement is as per the Agreement prescribed by the Council of Architects.

AF. The Promoter has registered the Project under the provisions of the Act with the Real Estate Regulatory Authority at no. **PM118002500262** authenticated copy is attached in **Annexure 'IV'** .

AG. The Promoter has appointed AVP Consultants as a structural Engineer for the preparation of the structural design and drawings of the buildings and the Promoter accepts the professional supervision of the Architect and the structural Engineer till the completion of the building/buildings.

AH. By virtue of the Development Agreement/Power of Attorney the Promoter has sole and exclusive right to sell the Flat/ shop/ Commercial premises in the said building/s to be constructed by the Promoter on the project land and to enter into Agreement/s with the Allottee/s of the Apartments to receive the sale consideration in respect thereof.

AI. On demand from the Allottee, the Promoter has given inspection to the Allottee of all the documents of title relating to the project land and the plans, designs and specifications approved by the Promoter's Architect and of such other documents as are specified under the Real Estate (Regulation and Development) Act 2016 (hereinafter referred to as "the said Act") and the Rules and Regulations made there under;

AJ. The authenticated copies of Certificate of Title issued by Alok Kumar I. Singh Advocate of the Promoter, authenticated copies of Property card or extract of Village Forms VI and VII and XII or any other relevant revenue record showing the nature of the title of the Promoter to the project land on which the Flat/ shop/ Commercial premises are constructed or are to be constructed have been annexed hereto and marked as Annexure 'V' and 'VI', respectively.

AK. The authenticated copies of the plans of the Layout as approved by the concerned Local Authority have been annexed hereto and marked as Annexure 'VII'.

AL. The authenticated copies of the Sketch plan of the Layout as proposed by the Promoter and according to which the construction of the buildings and open spaces are proposed to be provided for on the said project have been annexed hereto and marked as Annexure 'VIII'.

AM. The authenticated copies of the plans and specifications of the Flat/ shop/ Commercial premises agreed to be purchased by the Allottee, as approved by the concerned Local Authority have been annexed and marked as Annexure **'IX'** .

AN. The Promoter has got some of the approvals from the concerned local authority(s) to the plans, the specifications, elevations, sections and of the said building/s and shall obtain the balance approvals from various authorities from time to time, so as to obtain Building Completion Certificate or Occupancy Certificate of the said Building.

AO. While sanctioning the said plans concerned local authority and/or Government has laid down certain terms, conditions, stipulations and restrictions which are to be observed and performed by the Promoter while developing the project land and the said building and upon due observance and performance of which only the completion or occupancy certificate in respect of the said building/s shall be granted by the concerned local authority.

AP. The Promoter has accordingly commenced construction of the said building/s in accordance with the said proposed plans.

AQ. The Allottee has applied to the Promoters for allotment of Flat No.**205** admeasuring **500** sq. ft. (hereinafter referred to as "the said Apartment") RERA Carpet Area of the proposed new building known as **"DPS RIVERA"** (hereinafter referred to as "the said Building"). The said Apartment is collectively referred to as "the said Apartment/Premises", more particularly described in the Second Schedule hereunder written and shown in red colour hatched lines on the plan annexed hereto.

AR. The RERA carpet area of the said Apartment is**500** square feet and "carpet area" means the net usable floor area of an apartment, excluding the area covered by the external walls, areas under services shafts, exclusive balcony appurtenant to the said Apartment for exclusive use of the Allottee or verandah area and exclusive open terrace appurtenant to the said Flat/ shop/ Commercial premises for exclusive use of the Allottee, but includes the areas covered by the internal partition walls of the apartment.

AS. The Parties relying on the confirmations, representations and assurances of each other to faithfully abide by all the terms, conditions and stipulations contained in

this Agreement and all applicable laws, are now willing to enter into this Agreement on the terms and conditions appearing hereinafter;

AT. Prior to the execution of these presents the Allottee has paid to the Promoter a sum of **Rs. 12,00,000/-** being part payment of the sale consideration of the Flat/ shop/ Commercial premises agreed to be sold by the Promoter to the Allottee as advance payment or Application Fee (the payment and receipt whereof the Promoter both hereby admit and acknowledge) and the Allottee has agreed to pay to the Promoter the balance of the sale consideration in the manner hereinafter appearing.

AU. The Promoter has registered the Project under the provisions of the Real Estate (Regulation & Redevelopment) Act, 2016 with the Real Estate Regulatory Authority at no. **PM1180002500262** .

AV. The MCGM has granted Intimation of Disapproval ("IOD") bearing Ref. I 25355/2025 / 694/R/N Ward/DAHISAR R/N/337/1/New Dated **04-April 2025** in respect of said Building. The MCGM has also issued a Commencement Certificate ("CC") dated **6th June 2025** bearing Ref. No. for construction of the said Building/s to be constructed on the said Property. Annexed hereto as **Annexures "X" and "XI"** are copies of the IOD and CC.

AW. The Promoters have commenced the development on the said Property and proposed to construct on the said Property, a new building consisting ground plus 19 upper floors (the **said Project**).

AX. The Promoters have given inspection to the Allottee/s of all the documents of title relating to the said Property and the plans, designs and specifications prepared by the Promoter's Architect and of such other documents as are specified under the Real Estate (Regulation and Development) Act, 2016 (hereinafter referred to as **"the said Act"**) and the Rules and Regulations made there-under.

AY. Prior to execution of this Agreement, the Allottee has with respect to the said Premises, made enquiries thereon and is satisfied with respect to, (i) the title of the Promoters to develop the said Buildingand such title being clear and marketable; (ii) the approvals, permissions (including IOD and CC) obtained till date and (iii) the Promoter's entitlement to develop the said Property and construct the said Building under various provisions of the DCR and other applicable laws and sell the premises therein. The Allotee hereby undertakes not

to hereafter raise any objection and / or make any requisitions with respect to the title of the Promoters to the said Property. The Allotee undertakes that he/she/it/they have verified with their financial advisor and confirm/s that the Allotee has the financial capacity to consummate the transaction.

AZ. The Allottee has prior to the date hereof, examined a copy of the RERA certificate and has caused the RERA certificate to be examined in detail by their Advocate and Planning and Architectural consultants. The Allottee has agreed and consented to the development of the said Property. The Allottee has also examined all documents and information uploaded by the Promoter on the website of the Authority as required by RERA and the RERA rules and has understood the documents and information in all respects.

BA. Under section 13 of the said Act the Promoter is required to execute a written Agreement for sale of said Flat/ shop/ Commercial premises with the Allottee, being in fact these presents and also to register said Agreement under the Registration Act, 1908.

BB. In accordance with the terms and conditions set out in this Agreement and as mutually agreed upon by and between the Parties, the Promoters hereby agree to sell and the Allottee/s hereby agrees to purchase the said Premises at or for an agreed lumpsum aggregate consideration of **Rs. 1,20,21,700/- (Rupees Rupees One Crore Twenty Lakh Twenty One Thousand Seven Hundred Only)** (hereinafter referred to as **"the Sale Consideration"**) and the Allottee has agreed to pay to the Promoters, the Sale Consideration in the manner hereinafter appearing.

NOW THEREFORE, THIS AGREEMENT WITNESSETH AND IT IS HEREBY AGREED BY AND BETWEEN THE PARTIES HERETO AS FOLLOWS:

The Promoter shall construct the said building/s consisting of **Ground + 2 Podium + 19 Upper floors** on the project land in accordance with the plans, designs and specifications as approved by the concerned local authority from time to time. Provided

that the Promoter shall have to obtain prior consent in writing of the Allottee in respect of variations or modifications which may adversely affect the Flat/ shop/ Commercial premises of the Allottee except any alteration or addition required by any Government authorities or due to change in law.

1.a (i) The Allottee hereby agrees to purchase from the Promoter and the Promoter hereby agrees to sell to the Allottee Flat/ shop/ Commercial premises No.**205** of type **2** of carpet area admeasuring **500 sq.ft** on Second Floor in the building/wing (hereinafter referred to as "the Flat") as shown in the Floor plan thereof hereto annexed and marked Annexures "XI" and "XII" for the consideration of **Rs. 1,20,21,700/- (Rupees Rupees One Crore Twenty Lakh Twenty One Thousand Seven Hundred Only)** excluding Rs. **Rs. 3,00,000/- (Rupees Three Lakh Only)** Hundred Ten Only/-) PURCHASER/S shall pay **Rs. 1,20,217/- (Rupees One Lakh Twenty Thousand Two Hundred Seventeen Only)** by way of T.D.S which shall be deducted out of total consideration of Rs. **Rs. 1,20,21,700/- (Rupees One Crore Twenty Lakh Twenty One Thousand Seven Hundred Only)** being the proportionate price of the common areas and facilities appurtenant to the premises, the nature, extent and description of the common areas and facilities which are more particularly described in the Second Schedule annexed herewith.

1.b The total aggregate consideration amount for the Flat is thus **Rs. 1,20,21,700/- (Rupees One Crore Twenty Lakh Twenty One Thousand Seven Hundred Only)** subject to deduction of income tax at source (TDS) under the applicable law and the PURCHASER/S hereby agree to pay the promoters the said sale consideration.

1.c The Allottee has paid on or before execution of this Agreement a sum of **Rs. 12,00,000/- (Rupees Twelve Lakh Only)** as advance payment or application fee and the above payment is received by us and deposited in RERA designated Collection Bank Account, Bharat Co-operative Bank (Mumbai) Ltd., Ashok Nagar branch having IFSC code BCBM0000089 situated at Kandivali (East)In addition to above-mentioned Bank Account, we have opened in the same Bank, RERA Designated Separate Bank Account under RERA Designated Transaction Bank Account having account no. 008812100007535 and 008812100007566 respectively. The Allottee(s) hereby agrees to pay to that Promoter the balance amount of **Rs. 1,08,21,700/-/- (Rupees One Crore Eight Lakh Twenty One Thousand Seven Hundred Only)** .

and all other payments including consideration amount shall be paid by Cheque/Pay Order/Demand Draft, in the favour of "Sanctum Infratech Private Limited - RERA," "Sanctum Infratech Private Limited – GST" respectively as per the Paymer Schedule/Installment Pattern mentioned below in the following manner:

Sr. No.	Description	Due Amount
1	Booking (Earnest Money)	₹ 12,02,180
2	Within 60 days of booking	₹ 12,02,180
3	7th slab completion	₹ 24,04,360
4	14th slab completion	₹ 24,04,360
5	On completion of Terrace slab	₹ 24,04,360
6	On Possession	₹ 24,04,360

1(d)

The Total Consideration above excludes Goods and Service Tax (GST) or any othe similar taxes/new taxes, levies/cess or government levies in connection with construction and carrying out the project payable by the Allottee in respect of the said Premises.

1(e)

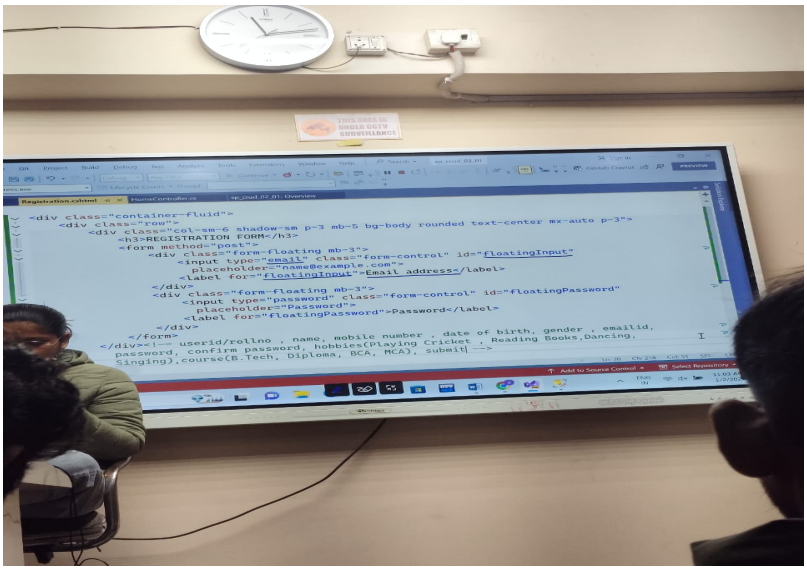
The Total Price is escalation-free, save and except escalations/increases, due to increase on account of development charges payable to the competent authority and/or any other increase in charges which may be levied or imposed by the competent authority Local Bodies/Government from time to time. The Promoter undertakes anc agrees that while raising a demand on the Allottee for increase in development charges, cost, or levies imposed by the competent authorities etc., the Promoter shall enclose the said notification/order/rule/regulation published/issued in that behalf to that effect along with the demand letter being issued to the Allottee, which shall only be applicable on subsequent payments.

1(f)

The Promoter shall confirm the final carpet area that has been allotted to the Allottee

after the construction of the building is complete and the occupancy certificate is granted by the competent authority, by furnishing details of the changes, if any, in the carpet area, subject to a variation cap of three percent. The total price payable for the carpet area shall be recalculated upon confirmation by the Promoter. If there is any reduction in the carpet area within more than the defined limit then Promoter shall refund the excess money paid by Allottee within forty-five days with annual interest at the rate specified in the Rules, from the date when such an excess amount was paid by the Allottee. If there is any increase in the carpet area allotted to Allottee, the Promoter shall demand additional amount from the Allottee as per the next milestone of the Payment Plan. Al these monetary adjustments shall be made at the same rate per square feet as agreed in Clause 1(a) of this Agreement.

Payment



1(g)

The Allottee authorises the Promoter to adjust/appropriate all payments made by him/her under any head(s) of dues against lawful outstanding, if any, in his/her name as the Promoter may in its sole discretion deem fit and the Allottee undertakes not to object/demand/direct the Promoter to adjust his payments in any manner.

2.1

The Promoter hereby agrees to observe, perform and comply with all the terms, conditions, stipulations and restrictions if any, which may have been imposed by the concerned local authority at the time of sanctioning the said plans or thereafter and shall, before handing over possession of the Apartment to the Allottee, obtain from the concerned local authority occupancy and/or completion certificates in respect of the

Apartment.

2.2

Time is essence for the Promoter as well as the Allottee. The Promoter shall abide by the time schedule for completing the project and handing over the Flat/ shop/ Commercial premises to the Allottee and the common areas to the association of the Allottees after receiving the occupancy certificate or the completion certificate or both, as the case may be. Similarly, the Allottee shall make timely payments of the instalment and other dues payable by him/her and meeting their obligations under the Agreement subject to the simultaneous completion of construction by the Promoter as provided in clause 1(c) herein above. ("Payment Plan").

3.

The Promoter hereby declares that the Floor Space Index (FSI) available as on date in respect of the project land is **5718 square meters** only and Promoter has planned to utilize Floor Space Index of**5718** by availing of TDR or TDR-FSI available on payment of premiums or FSI available as incentive FSI by implementing various schemes as mentioned in the Development Control Regulation or based on expectation of increased FSI which may be available in future on modification to Development Control Regulations, which are applicable to the said Project. The Promoter has disclosed the Floor Space Index of**5718 sqm** as proposed to be utilized by it on the Project land in the said Project and Allottee has agreed to purchase the said Apartment based on the proposed construction and sale of apartments to be carried out by the Promoter by utilizing the proposed FSIand on the understanding that the declared proposed FSI shall belong to Promoter only.

4.1

If the Promoter fails to abide by the time schedule for completing the project and handing over the Flat/ shop/ Commercial premises to the Allottee, the Promoter agrees to pay to the Allottee, who does not intend to withdraw from the project, interest as specified in the Rule, on all the amounts paid by the Allottee, for every month of delay, till the handing over of the possession. The Allottee agrees to pay to the Promoter, interest as specified in the Rule, on all the delayed payment which become due and payable by the Allottee to the Promoter under the terms of this Agreement from the date

the said amount is payable by the allottee(s) to the Promoter.

4.2

Without prejudice to the right of promoter to charge interest in terms of sub clause 4.1 above, on the Allottee committing default in payment on due date of any amount due and payable by the Allottee to the Promoter under this Agreement (including his/her proportionate share of taxes levied by concerned local authority and other outgoings) and on the allottee committing three defaults of payment of installments, the Promoter shall at his own option, may terminate this Agreement.

Provided that, Promoter shall give notice of fifteen days in writing to the Allottee, by Registered Post AD at the address provided by the allottee and mail at the e-mai address provided by the Allottee, of his intention to terminate this Agreement and of the specific breach or breaches of terms and conditions in respect of which it is intended to terminate the Agreement. If the Allottee fails to rectify the breach or breaches mentioned by the Promoter within the period of notice then at the end of such notice period, promoter shall be entitled to terminate this Agreement.

Provided further that upon termination of this Agreement as aforesaid, the Promoter shall refund to the Allottee (subject to adjustment and recovery of any agreed liquidated damages or any other amount which may be payable to Promoter) within a period of thirty days of the termination, the instalments of sale consideration of the Apartment which may till then have been paid by the Allottee to the Promoter.

5.

The fixtures and fittings with regard to the flooring and sanitary fittings and amenities like one or more lifts with particular brand to be provided by the Promoter in the said building and the Apartment as are set out in Annexure 'XII', annexed hereto..

6.

The Promoter shall give possession of the Apartment to the Allottee on or before **5th day of December 2027** . If the Promoter fails or neglects to give possession of the Apartment to the Allottee on account of reasons beyond his control and of his agents by the aforesaid date then the Promoter shall be liable on demand to refund to the Allottee

the amounts already received by him in respect of the Flat/ shop/ Commercial premises with interest at the same rate as may mentioned in the clause 4.1 herein above from the date the Promoter received the sum till the date the amounts and interest thereon is repaid.

Provided that the Promoter shall be entitled to reasonable extension of time for giving delivery of Flat/ shop/ Commercial premises on the aforesaid date, if the completion of building in which the Flat/ shop/ Commercial premises is to be situated is delayed on account of -

(i) war, civil commotion or act of God;
(ii) any notice, order, rule, notification of the Government and/or other public or competent authority/court.

7.1

Procedure for taking possession - The Promoter, upon obtaining the occupancy certificate from the competent authority and the payment made by the Allottee as per the agreement shall offer in writing the possession of the Flat/ shop/ Commercial premises to the Allottee in terms of this Agreement to be taken within 3 (three) months from the date of issue of such notice and the Promoter shall give possession of the Flat/ shop/ Commercial premises to the Allottee. The Promoter agrees and undertakes to indemnify the Allottee in case of failure of fulfillment of any of the provisions, formalities, documentation on part of the Promoter. The Allottee agrees to pay the maintenance charges as determined by the Promoter or association of allottees, as the case may be. The Promoter on its behalf shall offer the possession to the Allottee in writing within 7 days of receiving the occupancy certificate of the Project.

7.2

The Allottee shall take possession of the Apartment within 15 days of the written notice from the promoter to the Allottee intimating that the said Apartments are ready for use and occupancy.

7.3

Failure of Allottee to take Possession of Flat/ shop/ Commercial premises: Upon

receiving a written intimation from the Promoter as per clause 7.1, the Allottee shall take possession of the Flat/ shop/ Commercial premises from the Promoter by executing necessary indemnities, undertakings and such other documentation as prescribed in this Agreement, and the Promoter shall give possession of the Flat/ shop/ Commercial premises to the Allottee. In case the Allottee fails to take possession within the time provided in clause 7.1 such Allottee shall continue to be liable to pay maintenance charges as applicable.

7.4

Within a period of five years from the date of handing over the Flat/ shop/ Commercial premises to the Allottee, the Allottee brings to the notice of the Promoter any structural defect in the Flat/ shop/ Commercial premises or the building in which the Flat/ shop/ Commercial premises are situated or any defects on account of workmanship, quality or provision of service, then, wherever possible such defects shall be rectified by the Promoter at his own cost and in case it is not possible to rectify such defects, then the Allottee shall be entitled to receive from the Promoter, compensation for such defect in the manner as provided under the Act.

8.

The Allottee shall use the Flat/ shop/ Commercial premises or any part thereof or permit the same to be used only for purpose of **residence** . He shall use the garage or parking space only for purpose of keeping or parking vehicle.

9.1

The Allottee along with other allottee/s of Apartments in the building shall join the already existing Society for already developed portion of the said Land i.e. "Shreenath Bhuvan CHSL" or alternatively join in forming and registering the Society or Association or a Limited Company to be known by such name as the Promoter may decide and for this purpose also from time to time sign and execute the application for registration and/or membership and the other papers and documents necessary for the formation and registration of the Society or Association or Limited Company and for becoming a member, including the bye laws of the proposed Society and duly fill in, sign and return to the Promoter within seven days of the same being forwarded by the Promoter to the

Allottee, so as to enable the Promoter to register the common organisation of Allottee. No objection shall be taken by the Allottee if any changes or modifications are made in the draft bye-laws, or the Memorandum and/or Articles of Association, as may be required by the Registrar.

9.2

Upon completion of the New Building and receipt of the Occupation Certificate in respect of the New Building and subject to the Allottee/s having made payment of the entire consideration including all dues, outgoings to be paid hereunder, the Society shall admit the Allottee/s as members of the Society, subject to the Allottee/s agreeing to abide by the rules, regulations and bye-laws of the Society, and subject to the Promoters informing the Society to admit the Allottee/s as the member of the Society, together with a copy of this Agreement. The Allottee/s agrees to become a member of the Society and abide by the rules, regulations and bye-laws of the Society and to pay to the Society such amounts as may be payable by him/her/them from time to time, without recourse to the Promoters. The Allottee/s shall occupy the Premises subject to the rules and regulations and bye-laws of the Society. The Allottee/s shall sign all necessary applications, letters, documents and other papers and writings for the purpose of becoming a member of the Society. The Allottee/s hereby specifically confirms that he has read the bye-laws of the Society and agrees and undertakes to duly observe the same. It is expressly and specifically clarified, agreed, understood and confirmed by and between the Parties hereto that the unsold flats and other premises from out of the Promoters Premises in the New Building shall at all times be and remain the absolute property of the Promoters and the Promoters may if they so desire, become member/s of the Society in respect thereof and the Promoters shall have full right, absolute power and authority, and shall be unconditionally entitled to deal with and to sell, let or otherwise dispose of the same in any manner and for such consideration, and on such terms and conditions as it may in its sole and absolute discretion deem fit and proper, to any person or party of its choice, and neither the Allottee/s herein, nor the Society shall object to or dispute the same.

9.3

On the Promoters intimating to the Society the name or names of Allottee/s or acquirer/s of such unsold flats, premises, etc., the Society shall forthwith accept and admit such purchaser/s and acquirer/s as their member/s and shareholder/s, and shall forthwith issue share certificate/s and other necessary documents in their favour, without raising any

dispute or objection to the same, and without charging/ recovering from them any premium, fees, donation or any other amount of whatsoever nature.

9.4

Within 15 days after notice in writing is given by the Promoter to the Allottee that the Apartment is ready for use and occupation, the Allottee shall be liable to bear and pay the proportionate share (i.e. in proportion to the carpet area of the Apartment) of outgoings in respect of the project land and Building/s namely local taxes, betterment charges or such other levies by the concerned local authority and/or Government water charges, insurance, common lights, repairs and salaries of clerks bill collectors, chowkidars, sweepers and all other expenses necessary and incidental to the management and maintenance of the project land and building/s. The Allottee further agrees that till the Management of the Building is not handed over to the Society the Allottee shall pay to the Promoter provisional monthly contribution of the requisite maintenance per month towards the outgoings to the Promoters. The amounts so paid by the Allottee to the Promoter shall not carry any interest and remain with the Promoter until the handover of the Project to the Society.

10.

The Allottee shall on or before delivery of possession of the said Apartment/Premises keep deposited with the Promoter, the following amounts. Government Taxes will be charged at extra with GST being 18% (subject to change as per Government Guidelines):

(i)	Rs. 600/-	non-refundable for share money, application, entrance fee of the Society.
(ii)	Rs. 28,534/-	being 12 months flat maintenance charges for proportionate share of outgoing etc.
(iii)	Rs. 30,000/-	Corpus Fund
(iv)	**182866**	Development Charges & MCGM Expenses
(v)	Rs. 15,000/-	Towards cost of Electric meter/ electric connection.
(vi)	Rs. 15,000/-	Water Meter
(vii)	Rs. 7,000/-	MGL Connection

(viii)	Rs. 21,000/-	Installation of drainage
TOTAL	**Rs. 3,00,000/-**	**Rupees Three Lakh Only.**

11.

The Allottee shall pay a sum of **Rs. 15,000/- (Rupees Fifteen Thousand Only)** for meeting all legal costs, charges and expenses, including professional costs of the Attorney-at-Law/Advocates of the Promoter in connection with this drafting and engrossing this Agreement, executive and administrative works.

12.

REPRESENTATIONS AND WARRANTIES OF THE PROMOTER

i.

The Promoter hereby represents and warrants to the Allottee as follows: The Promoter has clear and marketable title with respect to the project land; as declared in the title report annexed to this agreement and has the requisite rights to carry out development upon the project land and also has actual, physical and legal possession of the project land for the implementation of the Project.

ii.

The Promoter has lawful rights and requisite approvals from the competent Authorities to carry out development of the Project and shall obtain requisite approvals from time to time to complete the development of the project;

iii.

There are no encumbrances upon the project land or the Project except those disclosed in the title report;

iv.

There is 1 litigation bearing Civil Suit No. 1874 of 2023 pending before Hon'ble Cit Civil Court at Dindoshi which is filed by one M/s RN Associates against Shreenat Bhuvan CHS Ltd. for declaration and injunction and same is truly disclosed in the titl report;

v.

All approvals, licenses and permits issued by the competent authorities with respect to the Project, project land and said building/wing are valid and subsisting and have been obtained by following due process of law. Further, all approvals, licenses and permits to be issued by the competent authorities with respect to the Project, project land and said building/wing shall be obtained by following due process of law and the Promoter has been and shall, at all times, remain to be in compliance with all applicable laws in relation to the Project, project land, Building/wing and common areas;

vi.

The Promoter has the right to enter into this Agreement and has not committed or omitted to perform any act or thing, whereby the right, title and interest of the Allottee created herein, may prejudicially be affected;

vii.

The Promoter has not entered into any agreement for sale and/or development agreement or any other agreement / arrangement with any person or party with respect to the project land, including the Project and the said Flat/ shop/ Commercial premises which will, in any manner, affect the rights of Allottee under this Agreement;

viii.

The Promoter confirms that the Promoter is not restricted in any manner whatsoever from selling the said Flat/ shop/ Commercial premises to the Allottee in the manner contemplated in this Agreement;

ix.

At the time of execution of the conveyance deed of the structure to the association of allottees the Promoter shall handover lawful, vacant, peaceful possession of the common areas to the association of allottees.

x.

The Promoter has duly paid and shall continue to pay and discharge undisputed governmental dues, rates, charges and taxes and other monies, levies, impositions, premiums, damages and/or penalties and other outgoings, whatsoever, payable with respect to the said project to the competent Authorities;

xi.

No notice from the Government or any other local body or authority or any legislative enactment, government ordinance, order, notification (including any notice for acquisition or requisition of the said property) has been received or served upon the Promoter in respect of the project land and/or the Project except those disclosed in the title report.

13.

The Allottee/s or herself/themselves with intention to bring all persons into who so ever hands the Apartment may come, hereby covenants with the Promoter as follows:

i.

To maintain the Flat/ shop/ Commercial premises at the Allottee's own cost in good and tenantable repair and condition from the date that of possession of the Flat/ shop/ Commercial premises is taken and shall not do or suffer to be done anything in or to the building in which the Flat/ shop/ Commercial premises is situated which may be against the rules, regulations or bye-laws or change/alter or make addition in or to the building in which the Flat/ shop/ Commercial premises is situated and the Apartment itself or any part thereof without the consent of the local authorities, if required.

ii.

Not to store in the Flat/ shop/ Commercial premises any goods which are of hazardous,

combustible or dangerous nature or are so heavy as to damage the construction or structure of the building in which the Flat/ shop/ Commercial premises is situated or storing of which goods is objected to by the concerned local or other authority and shall take care while carrying heavy packages which may damage or likely to damage the staircases, common passages or any other structure of the building in which the Flat/ shop/ Commercial premises is situated, including entrances of the building in which the Flat/ shop/ Commercial premises is situated and in case any damage is caused to the building in which the Flat/ shop/ Commercial premises is situated.

iii.

To carry out at his own cost all internal repairs to the said Flat/ shop/ Commercial premises and maintain the Flat/ shop/ Commercial premises in the same condition, state and order in which it was delivered by the Promoter to the Allottee and shall not do or suffer to be done anything in or to the building in which the Flat/ shop/ Commercial premises is situated or the Flat/ shop/ Commercial premises which may be contrary to the rules and regulations and bye-laws of the concerned local authority or other public authority. In the event of the Allottee committing any act in contravention of the above provision, the Allottee shall be responsible and liable for the consequences thereof to the concerned local authority and/or other public authority.

iv.

Not to demolish or cause to be demolished the Flat/ shop/ Commercial premises or any part thereof, nor at any time make or cause to be made any addition or alteration of whatever nature in or to the Flat/ shop/ Commercial premises or any part thereof, nor any alteration in the elevation and outside colour scheme of the building in which the Flat/ shop/ Commercial premises is situated and shall keep the portion, sewers, drains and pipes in the Flat/ shop/ Commercial premises and the appurtenances thereto in good tenantable repair and condition, and in particular, so as to support shelter and protect the other parts of the building in which the Flat/ shop/ Commercial premises is situated and shall not chisel or in any other manner cause damage to columns, beams, walls, slabs or RCC, Pardis or other structural members in the Flat/ shop/ Commercial premises without the prior written permission of the Promoter and/or the Society or the Limited Company.

v.

No iron grills will be installed other than ready approved design and agreed with the builder. Prior written approval of managing committee is must for installation of any Grills.

vi.

Not to do or permit to be done any act or thing which may render void or voidable any insurance of the project land and the building in which the Flat/ shop/ Commercial premises is situated or any part thereof.

vii.

Not to throw dirt, rubbish, rags, garbage or other refuse or permit the same to be thrown from the said Flat/ shop/ Commercial premises in the compound or any portion of the project land and the building in which the Flat/ shop/ Commercial premises is situated.

viii.

Pay to the Promoter within fifteen days of demand by the Promoter, his share of security deposit demanded by the concerned local authority or Government or giving water, electricity or any other service connection to the building in which the Flat/ shop/ Commercial premises is situated.

ix.

To bear and pay increase in local taxes, water charges, insurance and such other levies, if any, which are imposed by the concerned local authority and/or Government and/or public authority, on account of change of user of the Apartment by the Allottee for any purposes other than for purpose for which it is sold.

x.

The Allottee shall not let, sub-let, transfer, assign or part with interest or benefit factor of this Agreement or part with the possession of the Flat/ shop/ Commercial premises until all the dues payable by the Allottee to the Promoter under this Agreement are fully paid up.

xi.

The Allottee shall observe and perform all the rules and regulations of the Society and the additions, alterations or amendments thereof that may be made from time to time for protection and maintenance of the said building and the Apartments therein and for the observance and performance of the Building Rules, Regulations and Bye-laws for the time being of the concerned local authority and of Government and other public bodies. The Allottee shall also observe and perform all the stipulations and conditions laid down by the Society/Limited Company/Apex Body/Federation regarding the occupancy and use of the Apartment in the Building and shall pay and contribute regularly and punctually towards the taxes, expenses or other out-goings in accordance with the terms of this Agreement.

xii.

Until the completion of the said Project in all its respects and complete handover thereof to the Society, the Allottee shall permit the Promoter and their surveyors and agents, with or without workmen and others, to enter upon the Flat/ shop/ Commercial premises for carrying out necessary work in relation to the Project.

14. FORMATION / ADMISSION TO SOCIETY AND TRANSFER OF TITLE

(i)

The Allottee along with other Allottee(s) of Apartments in the building shall upon completion of the payment of Sale Consideration and all other charges as provided under these presents, join the already existing Resulting Society i.e. Shreenath Bhuvan Co-operative Housing Society Limited and for this purpose also from time to time sign and execute the application for membership and the other papers and documents necessary for the admission in the Society for becoming a member, adhering to the rules and bye-laws of the Society and duly fill in, sign and return to the Promoter within seven days of the same being forwarded by the Promoter to the Allottee. No objection shall be taken by the Allottee if any changes or modifications are made in the draft bye-laws, as may be required by the Registrar of Co-operative Societies or the Society itself, as

the case may be, or any other Competent Authority.

(ii)

Within 15 days after notice in writing is given by the Promoter to the Allottee that the Apartment is ready for use and occupancy, the Allottee shall be liable to bear and pay the proportionate share (i.e. proportion to the carpet area of the Apartment) of outgoings in respect of the project land and Building/s namely local taxes, betterment charges or such other levies by the concerned local authority and/or Government water charges, insurance, common lights, repairs and salaries of clerks bill collectors, chowkidars, sweepers and all other expenses necessary and incidental to the management and maintenance of the project land and building/s. Until the Society does not get handed over of the said Project after completion by the Promoters herein, the Allottee shall pay to the Promoter such proportionate share of outgoings as may be determined. The amounts so paid by the Allottee to the Promoter shall not carry any interest and remain with the Promoter until a handover of the New Building and the affairs/management thereof in favour of the society as aforesaid.

15.

Nothing contained in this Agreement is intended to be nor shall be construed as a grant, demise or assignment in law, of the said Flat/ shop/ Commercial premises or of the said Plot and Building or any part thereof. The Allottee shall have no claim save and except in respect of the Flat/ shop/ Commercial premises hereby agreed to be sold to him and all open spaces, parking spaces, lobbies, stair cases, terraces, recreation spaces, will remain the property of the Promoter until the said structure of the building is transferred to the Society/Limited Company or other body and until the project land is transferred to the Apex Body/Federation as hereinbefore mentioned.

16.

PROMOTER SHALL NOT MORTGAGE OR CREATE A CHARGE

After the Promoter executes this Agreement he shall not mortgage or create a charge on the Flat/ shop/ Commercial premises and if any such mortgage or charge is made or created then notwithstanding anything contained in any other law for the time being in force, such mortgage or charge shall not affect the right and interest of the Allottee who

has taken or agreed to take such Flat/ shop/ Commercial premises.

17.

BINDING EFFECT

Forwarding this Agreement to the Allottee by the Promoter does not create a binding obligation on the part of the Promoter or the Allottee until firstly, the Allottee signs and delivers this Agreement with all the schedules along with the payments due as stipulated in the Payment Plan within 30 (thirty) days from the date of receipt by the Allottee and secondly, appears for registration of the same before the concerned Sub-Registrar as and when intimated by the Promoter. If the Allottee fails to execute and deliver to the Promoter this Agreement within 30 (thirty) days from the date of its receipt by the Allottee and/or appear before the Sub-Registrar for its registration as and when intimated by the Promoter, then the Promoter shall serve a notice to the Allottee for rectifying the default, which if not rectified within 15 (fifteen) days from the date of its receipt by the Allottee, application of the Allottee shall be treated as cancelled and all sums deposited by the Allottee in connection therewith, including the booking amount shall be returned to the Allottee without any interest or compensation whatsoever.

18.

ENTIRE AGREEMENT

This Agreement, along with its schedules and annexures, constitutes the entire Agreement between the Parties with respect to the subject matter hereof and supersedes any and all understandings, any other agreements, allotment letter, correspondences, arrangements whether written or oral, if any, between the Parties in regard to the said apartment/plot/building, as the case may be.

19.

RIGHT TO AMEND

This Agreement may only be amended through written consent of the Parties.

20.

PROVISIONS OF THIS AGREEMENT APPLICABLE TO ALLOTT SUBSEQUENT ALLOTTEES

It is clearly understood and so agreed by and between the Parties hereto that all the provisions contained herein and the obligations arising thereunder in respect of the Project shall equally be applicable to and enforceable against any subsequent Allottees of the Flat/ shop/ Commercial premises, in case of a transfer, as the said obligations go along with the Flat/ shop/ Commercial premises for all intents and purposes.

21.

SEVERABILITY

If any provision of this Agreement shall be determined to be void or unenforceable under the Act or the Rules and Regulations made there under or under other applicable laws, such provisions of the Agreement shall be deemed amended or deleted in so far as reasonably inconsistent with the purpose of this Agreement and to the extent necessary to conform to Act or the Rules and Regulations made there under or the applicable law, as the case may be, and the remaining provisions of this Agreement shall remain valid and enforceable as applicable at the time of execution of this Agreement.

22.

METHOD OF CALCULATION OF PROPORTIONATE SH WHEREVER REFERRED TO IN THE AGREEMENT

Wherever in this Agreement it is stipulated that the Allottee has to make any payment, in common with other Allottee(s) in Project, the same shall be in proportion to the carpet area of the Flat/ shop/ Commercial premises.

23.

FURTHER ASSURANCES

Both Parties agree that they shall execute, acknowledge and deliver to the other such instruments and take such other actions, in addition to the instruments and actions specifically provided for herein, as may be reasonably required in order to effectuate the

provisions of this Agreement or of any transaction contemplated herein or to confirm or perfect any right to be created or transferred hereunder or pursuant to any such transaction.

In case the transaction being executed by this agreement between the promoter and the allottee is facilitated by a Registered Real Estate Agent, all amounts (including taxes) agreed as payable remuneration / fees / charges for services / commission / brokerage to the said Registered Real Estate Agent, shall be paid by the Promoter / allottee / both as the case may be, in accordance with the agreed terms of payment.

24.

PLACE OF EXECUTION

The execution of this Agreement shall be complete only upon its execution by the Promoter through its authorized signatory at the Promoter's Office, or at some other place, which may be mutually agreed between the Promoter and the Allottee, in after the Agreement is duly executed by the Allottee and the Promoter or simultaneously with the execution the said Agreement shall be registered at the office of the Sub-Registrar. Hence, this Agreement shall be deemed to have been executed at Mumbai.

25.

The Allottee and/or Promoter shall present this Agreement as well as the conveyance/assignment of lease at the proper registration office of registration within the time limit prescribed by the Registration Act and the Promoter will attend such office and admit execution thereof.

26.

That all notices to be served on the Allottee and the Promoter as contemplated by this Agreement shall be deemed to have been duly served if sent to the Allottee or the Promoter by Registered Post A.D. and notified Email ID/Under Certificate of Posting at their respective addresses specified below:

Name of Allottee: <u>MR. Gaurav Chaurasiya & MRS. Preeti</u>

(Allottee's Address) **124 , Beerapur ,Beerapur , Pratapgarh.**

Promoter Name: M/s. Sanctum Infratech Private Limited

(Promoter Address) Notified Email ID: -604, Grand Edifice, Akruli Road, Nea Thakur House, Kandivali East Mumbai Maharashtra 400068.Email Id **sanctuminfratech@gmail.com**

It shall be the duty of the Allottee and the promoter to inform each other of any change in address subsequent to the execution of this Agreement in the above address by Registered Post failing which all communications and letters posted at the above address shall be deemed to have been received by the promoter or the Allottee, as the case may be.

27.

JOINT ALLOTTEES

That in case there are Joint Allottees all communications shall be sent by the Promoter to the Allottee whose name appears first and at the address given by him/her which shall for all intents and purposes to consider as properly served on all the Allottees.

28.

Stamp Duty and Registration

All costs charges and expenses arising out and incidental to this Agreement, including the stamp duty and registration charges payable for this Agreement or any agreement or deed or document as may hereafter be executed in pursuance of this Agreement shall be borne and paid by the Allottees exclusively.

29.

Dispute Resolution

Any dispute between parties shall be settled amicably. In case of failure to settle the dispute amicably, which shall be referred to the Authority as per the provisions of the Real Estate (Regulation and Development) Act, 2016, Rules and Regulations, ther under.

30.

GOVERNING LAW

That the rights and obligations of the parties under or arising out of this Agreement shall be construed and enforced in accordance with the laws of India for the time being in force and the courts will have the jurisdiction of this Agreement.

IN WITNESS WHEREOF parties hereinabove named have set their respective hands and signed this Agreement for sale at Mumbai in the presence of attesting witness, signing as such on the day first above written.

FIRST SCHEDULE OF PROPERTY ABOVE REFERRED TO:

(Description of "the said Property")

All that piece or parcel of land bearing Survey No. 281 Hissa No. 2 (Part corresponding to C.T.S. No. 694 of Village Dahisar admeasuring**1925.40 sq. mtrs** or thereabout along with building known as Shreenath Bhuvan standing thereon in Taluka Borivali in the Registration District and Sub-District of Mumbai and Mumbai Suburba and bounded as follows:

On or towards the East: Mahakali Co-op HSG Soc. Ltd.
On or towards the West: Sayani Wadi
On or towards the North: Existing D.P Road
On or towards the South: Nicholas wadi

SECOND SCHEDULE OF PROPERTY ABOVE REFERRED TO:

(Description of "the said Premises")

An Apartment/Flat/Unit bearing No.**205** admeasuring **500 sq. feet** RERA carpet area on the **Second Floor** floor of the building **"DPS RIVERA"** to be constructed on the said Land described in First Schedule.

SIGNED, SEALED AND DELIVERED BY)
the within-named **"PROMOTER"**)

SANCTUM INFRATECH PVT. LTD)

through its authorized signatory)

MR. RAVI KANT SINGH)

MR. BIPIN RAVINDRA SINGH)

in the presence of....

1. _____

2. _____

SIGNED AND DELIVERED BY

the within-named **"ALLOTTEE/S"**

Gaurav Chaurasiya

Preeti

in the presence of...

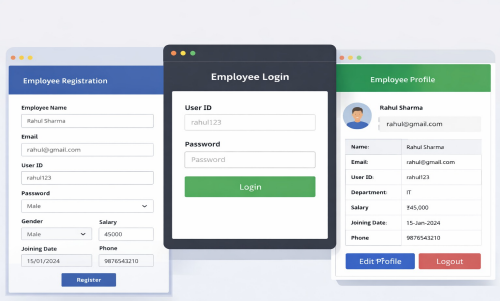
1. _____

2. _____

RECEIPT

RECEIVED of and from within-named Allottee/s a sum o**Rs. 12,00,000/-** (**Rupees Twelve Lakh Only**) being earnest money/monies payable by him/her/it/them to us in the following manner:

Sr. No.	**Payment details (cheque, bank, date)**
1	Cheque (---------)

2	

<u>Rupees Twelve Lakh Only</u>

We say received,

For, **M/S. SANCTUM INFRATECH PRIVATE LIMITED**

WITNESSES:

1. _____

2. _____

M/S. SANCTUM INFRATECH PRIVATE LIMITED

.... PROMOTERS

AND

_____

Gaurav Chaurasiya

Preeti

****

AGREEMENT FOR SALE

****

Dated this ___ day of _____ 2026